

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1226

By: Rader of the Senate

and

Tedford of the House

6
7
8
9 An Act relating to motor vehicles; amending 47 O.S.
10 2021, Sections 10-103 and 10-106, which relate to
11 accidents; expanding criteria by which a person must
12 remain at scene or make notification of certain
13 accident; making language gender neutral; updating
14 statutory language; and providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 47 O.S. 2021, Section 10-103, is
17 amended to read as follows:

18 Section 10-103. The driver of ~~any a~~ vehicle involved in an
19 accident resulting ~~only~~ in damage to property or a vehicle ~~which~~
20 that is driven or attended by any person shall immediately stop ~~such~~
21 ~~vehicle~~ at the scene of ~~such~~ the accident or as close ~~thereto~~ to the
22 scene of the accident as possible ~~but or~~ shall ~~forthwith~~ immediately
23 return to ~~and in every event~~ the scene of the accident. The driver
24 shall remain at the scene of ~~such~~ the accident until he or she has
fulfilled the requirements of Section 10-104 of this title. Every

1 such stop shall be made without obstructing traffic more than is
2 necessary. Any person failing to stop or comply with ~~said~~ the
3 requirements ~~under such circumstances~~ of this section shall, upon
4 conviction, be guilty of a misdemeanor ~~and upon conviction thereof~~
5 ~~shall be punished~~ punishable by a fine not to exceed Five Hundred
6 Dollars (\$500.00), or by imprisonment in the county jail for not
7 more than one (1) year, or by both such fine and imprisonment. In
8 addition to the criminal penalties imposed by this section, any
9 person violating the provisions of this section shall be subject to
10 liability for damages in an amount equal to three times the value of
11 the damage caused by the accident. ~~Said~~ Such damages shall be
12 recoverable in a civil action. Nothing in this section shall
13 prevent a judge from ordering restitution for any damage caused by a
14 driver involved in an accident provided for in this section.

15 SECTION 2. AMENDATORY 47 O.S. 2021, Section 10-106, is
16 amended to read as follows:

17 Section 10-106. The driver of any vehicle involved in an
18 accident resulting only in damage to fixtures, fences, or other
19 property legally upon or adjacent to a public or private road,
20 street, or highway shall take reasonable steps to locate and notify
21 the owner or person in charge of such property of such fact and of
22 the driver's name and address and of the registration number of the
23 vehicle being driven and shall upon request exhibit a driver license
24 and security verification form, as defined in Section 7-600 of this

1 title, and shall make report of such accident when and as required
2 in Section 10-108 of this title.

3 Any person failing to stop or comply with ~~said~~ such requirements
4 under such circumstances shall, upon conviction, be guilty of a
5 misdemeanor punishable by a fine not to exceed Five Hundred Dollars
6 (\$500.00), or by imprisonment in the county jail for not more than
7 one (1) year, or by both such fine and imprisonment. Nothing in
8 this section shall prevent a judge from ordering restitution for any
9 damage caused by a driver involved in an accident provided for in
10 this section.

11 SECTION 3. This act shall become effective November 1, 2026.
12

13 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
14 OVERSIGHT, dated 04/16/2026 - DO PASS.
15
16
17
18
19
20
21
22
23
24